



Office of Commissioner for Trademarks

Deputy Commissioner for Examination Policy

Trademark Register Protection Office Project

Trademark Legal Policy Office Project

Fraud Identification, Suppression and Defeat

Unsupervised AI: Uncovering “Bad Law”

Preventing Impersonations

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U.S. PATENT & TRADEMARK OFFICE

TRADEMARK, FINANCIAL & ENTERPRISE BUSINESS SERVICES DIVISION REQUEST FOR INFORMATION (RFI)

FRAUD IDENTIFICATION, SUPPRESSION, AND DEFEAT UNSUPERVISED AI: UNCOVERING BAD LAW PREVENTING IMPERSONATIONS

I. Introduction

The purpose of this RFI is to assist the government in conducting market research. This information will be used for market research only. Respondents are encouraged to submit capability statements for one, two, or all three projects in Section III, Targeted Concerns and Requirements. The government is not obligated to release a future solicitation.

II. Background

The United States Patent and Trademark Office (USPTO) is the federal agency authorized to grant U.S. patents and register U.S. trademarks. By granting patents, the USPTO fulfills the mandate of Article I, Section 8, Clause 8, of the Constitution that the legislative branch "promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries." The USPTO registers trademarks based on the commerce clause of the Constitution (Article I, Section 8, Clause 3). The USPTO carries out its mission by examining patent and trademark applications, issuing patents and registering trademarks, disseminating patent and trademark information to the public, and by encouraging a domestic and international climate in which intellectual property can flourish.

The USPTO is guided by the Trademark Act of the United States Code (15 U.S.C. §1052). The agency seeks expertise in artificial intelligence (AI) capabilities as they specifically relate to fraud and improper behavior and determination of during trademark examination and to assess vendor/organization capabilities and interest. As the world's body of knowledge increases and tools expand to access information, the ability of individuals to review and filter this content is increasingly challenging. The USPTO is interested in the use of advanced technology to supplement and improve emerging technology capabilities with differentiating solutions that utilize all manner of advances. Quantum computing, AI, machine learning (ML), natural language processing, etc. are examples of technologies that might assist in narrowing the broad information base to manageable sizes for more careful individual review. This RFI will explore developing market interest and capacity in supplying cutting-edge technologies to augment current USPTO Trademark capabilities.

As a federal agency, it is important for the USPTO to be able to explain all decisions made. As a result of this, solution capabilities must be transparent to the USPTO and as well as to the general public. Black box solutions will not be accepted. The USPTO must be able to explain and generate a full and clear record to explain how decisions are made. In order to provide a complete, accurate,

and uniform record of what has been considered by attorneys or other staff, the USPTO has established procedures for recording the actions of the staff in the “prosecution history” of every application or action. Such a record is of importance to anyone evaluating the quality of a trademark, particularly if the trademark is being opposed or involved in litigation (see *Trademark Manual of Examining Procedure (TMEP)*).

“Trademark examination” refers to the series of interactions between intellectual property owners (or their representative – typically an attorney), and examining attorneys (or pre/post staff) that can result in a registered mark. When the Applicant (or representative) submits their mark application, the USPTO assigns a Trademark Examining Attorney to review the application to determine whether to register the proposed mark. One of the most important tasks of this Trademark Examining Attorney is to substantively review the application for legal sufficiency. Examining attorneys and associated examination staff operate in a “production” capacity and are focused on two main components of the *USPTO Strategic Plan*: “pendency” and “quality.” Trademark leadership describes its perspective on pendency as being:

Committed to meeting the business needs of our customers by continuing to provide an indication of registrability and a final decision on registration in a timely manner. Because the volume of trademark application filings can be volatile, we will continue to align trademark examination capacity with incoming workload and current inventory through various management techniques, such as the use of forecasting and analytics to align staffing to pendency goals.

Although the current pendency targets appear to serve the trademark community well, we will continually work with our customers to develop long-term pendency targets that recognize the changing needs of existing and new trademark customers. We will also focus on optimizing pendencies for all types of actions throughout the Trademark organization.

Trademark management defines its focus on quality as:

Quality measurement takes into consideration adherence to registrability standards, comprehensive excellence of search, evidence, writing, and trademark attorney decision-making. We have routinely achieved our trademark quality targets and are committed to sustaining these high-performance levels.

The quality of the Trademark Register depends on the validity of the claims that marks are in use for the goods and services included in registrations. We will continue to take steps to improve the accuracy and integrity of the Register, including by auditing trademark maintenance affidavits to require proof of use on claimed goods and services and exploring other processes that “declutter” the Register.

Respondents are expected to return potential capabilities with timeliness and quality goals in mind. Potential solutions that extend pendency outside agency targets or quality outside the range of acceptable performance will be removed from consideration.

III. Market Research Guidance

This Request for Information (RFI) market research survey and subsequent market research stages listed below are intended as preliminary market research information gathering which the USPTO will use to determine which vendor(s) is/are the most likely to successfully meet the agency's needs. The RFI is not a solicitation for a contract. The Contracting Officer (CO) may elect to utilize the Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A), which provides for the Alternative Competition Method defined in section 6.1.1 of the Patent and Trademark Office Acquisition Guidelines (PTAG). If the USPTO CO elects to use PTAG 6.1.1. Alternative Competition then the CO may decide to progress to issuing a solicitation to the vendor(s), who the Contracting Officer Representative (COR) and CO determine from the PTAG 6.1.1. process to be most likely to successfully meet the agency's needs. Throughout this market research process, capable vendors may be determined eligible to participate in an alternative competition. This multi-staged market research effort is not a request for proposals. It is a market Research RFI.

The USPTO intends to use a rapid-multi-staged market research approach which seeks to efficiently engage industry early in the process and foster innovation, especially in the market research for Anti-Fraud Impersonation AI, Unsupervised AI, and Discovering Impersonations AI. This innovative RFI market research model allows the USPTO and Industry participants to quickly and collaboratively co-create solutions, moving efficiently from market research to possible solicitation and then to potential award with maximum transparency and minimum time. The Fraud Impersonation AI, Unsupervised AI, and Discovering Impersonations AI market research RFI envisions a process using a multi-staged, "show me, don't tell me approach" – asking industry for evidence-based, effective, and efficient approaches applicable to USPTO's specific mission of granting patents and registering trademarks.

Failure to submit a response to Stage One eliminates vendors from participating in future Stages, and from any additional consideration for participation in an Alternative Competition PTAG 6.1.1.

The Fraud Impersonation AI, Unsupervised AI, and Discovering Impersonations AI. market research will leverage initial stages and stages are envisioned as:

☐ Stage One: Industry Survey RFI Addressing Target Concerns and Requirements. (This survey includes the Questionnaire responses outlined in Section VI of this document.

Note: Participation in Alternative Competition will only be used if the contracting officer elects to use Patent and Trademark Office Efficiency Act, 35 U.S.C.

☐ Stage Two: Invitation to submit Concept Paper(s) & present/demonstrate a prototype solution (e.g. bake-off).

☐ Stage Three: Identification of the final vendor(s) to participate in the Alternative Competition, Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A).

Note: The USPTO reserves the right to issue multiple solicitations depending on the results of this market research and the agency's requirements.

☐ Stage Four: Issuance of Solicitation(s); Evaluation(s), and Contract Award(s). Overarching Plan & Pilot(s).

After each stage, USPTO's CO and COR will determine if the subsequent stage is necessary. If after Stage One or any subsequent stage's review and analysis of the market research information, the CO and COR determine that sufficient information has been gathered, the USPTO, may determine which vendor(s) is/are the most likely to successfully meet the agency's needs and possibly move to the next Stage or directly to Stage Four (Identification of the final vendor(s) to participate in the Alternative Competition) and will enter Stage Four, issue a solicitation.

IV. Targeted Concerns and Requirements

Fraud Identification, Suppression and Defeat: The Trademark Register Protection Office (RPO) ensures the integrity of the Trademark Register by identifying and removing inaccurate, false and fraudulent submissions from the trademark register. It administers the Administrative Sanctions program, the Non-Use cancellation proceedings before the Director, the Post-Registration audit program, USPTO.gov account suspensions, as well as scam awareness efforts. As part of the Administrative Sanctions program, the RPO manually identifies suspicious submissions through identifying suspicious filing behavior and violations of USPTO Rules of Practice and professional conduct via various internal administrative tools. Once identified, the RPO pulls those cases out of regular examination and then evaluates whether the applications or registrations should be the subject of a sanctions order and termination or whether they should be returned to examination for regular handling. The RPO also shuts down USPTO.gov accounts from which suspicious filings emanate. In certain cases, the RPO also coordinates with USPTO Finance to identify and block credit cards used in connection with fraudulent submissions.

Requirement 1: Automate account monitoring of USPTO.gov accounts by identifying anomalous filing behavior, and flagging or suspending accounts when the behavior is outside certain parameters.

Requirement 2: Identify high risk applications (risk predictor) and divert them to the Register Protection Office, or to a slow track examination queue for administrative review and sanctions without affecting pendency. The prediction can be based on known common data elements from previously identified scams found in USPTO.gov account data or in application data. Risky filings could also be identified through Okta logs and Finance data.

Requirement 3: Automate validation of an attorneys' credentials with state bar associations at the time that the attorney creates a USPTO.gov account and provides bar information in order to select the "attorney user role"; also automate validation of credentials already provided (i.e., validate the backlog of existing account holders with an attorney user role).

Requirement 4: Automate analysis of USPTO.gov account creation data to flag accounts likely associated with improper or fraudulent filings.

Requirement 5: Automate detection of credit cards and transactions likely associated with fraudulent filings or stolen credentials.

Unsupervised AI: Uncovering “Bad Law”: Both unrepresented applicants and attorneys are using AI tools to draft trademark submissions. As long as those submissions are reviewed and corrected for accuracy, the USPTO will not necessarily question the use of AI by the submitter. However, submitters must comply with the USPTO Rules of Practice, including the rule regarding what the submitter is certifying by the act of submitting under 37 CFR 11.18. Unsupervised AI could be found to violate 37 CFR 11.18, depending on the circumstances. Therefore, the USPTO would like to know when a trademark submission was generated by AI and was not reviewed for accuracy in compliance with the rules so that it can take appropriate action, which may include referral to the USPTO’s Office of Enrollment and Discipline or for administrative sanctions.

Requirement 1: Verify the accuracy of case law citations and summaries, as well as any publicly available facts provided in the submission (serial numbers, registration numbers, trademarks, goods and services) in the submission. Detect whether a specimen of use was AI generated. Specimens of use must show actual use of the mark in commerce; an AI generated specimen would not show actual use. The tool could be use by examining attorneys within their TM Exam docket, or it could be automated to run against all filings and then flag, putting a note in the file, those potential unsupervised AI uses that the examining attorney or other staff would review and address in examination.

Discovering Impersonations: The Trademark Register Protection Office (RPO) ensures the integrity of the Trademark Register by identifying and removing inaccurate, false and fraudulent submissions from the trademark register. It also administers the TMScams@uspto.gov mailbox where customers report ongoing scams. Most application and registration data are publicly available so that third parties can contact trademark applicants and owners to address conflicts. An unintended consequence is that scammers use that data to contact our customers and impersonate the USPTO, scamming victims out of thousands of dollars. Many victims contacting us at TMScams@uspto.gov tell us that they get duped by low-cost trademark registration services that turn into high pressure demands from USPTO impersonators for unnecessary fees, services, and attestations through fake USPTO payment portals.

Customers used to be able to contact the Trademark Assistance Center to confer with a specialist on whether a solicitation that appears to be from the USPTO is legitimate. However, due to staffing challenges, TAC is not always immediately available to customers who are facing a high pressure, urgent communication from someone claiming to be the USPTO. In the long term, to address USPTO impersonation, we are increasing controls over who can make submissions through USPTO.gov accounts and are creating a user portal for customers to access their electronic records reducing the potential for spoofing. That IT is several years away from development and we need something in the interim to help customers spot an impersonator.

Requirement 1: Allow a customer to auto-validate that a communication (text, email, mail, phone call) purportedly from the USPTO is legitimate.

V. Functional Areas

The vendor must provide the USPTO a Federal Risk and Authorization Management Program (FedRAMP) certified (or FedRAMP-ready) AI/ML solutions that are scalable. The vendor will operate and maintain the information technology infrastructure necessary to meet security, performance, and compliance, and provide documentation to support training of USPTO users as



set forth herein. The vendor must also provide usage data and metrics to the USPTO.

Note: The USPTO is only accepting submissions from vendors that are currently FedRAMP certified or in work. If a vendor does not have – or is not seeking – a FedRAMP certification, they are not eligible to participate in this RFI. Vendors must submit their FedRAMP certification with their response.

Any questions regarding how to respond to the RFI or recommend changes to the RFI are due by 12 Noon EST on Monday, April 20, 2026. Questions must be submitted electronically by email to Alan Elder and Bradley Beers at Alan.Elder@uspto.gov and Bradley.Beers@uspto.gov.

VI. Stage One Questionnaires

Stage One Questionnaire responses must be included in your RFI response and be submitted electronically by email to both Alan Elder and Bradley Beers at alan.elder@uspto.gov and bradley.beers@uspto.gov. Questionnaire responses must consider and be consistent with USPTO's Targeted Concerns and Requirement in section IV above. All questionnaire responses must be in dark font with no less than 10-point font size for legibility. Complete the following questionnaire to provide the requested information as outlined below, with no substitutions, additions, or deletions. Pages beyond the page length limit set forth below for each portion will not be considered.

All vendor responses and RFI submissions are due by 12 Noon EST on Monday, May 4, 2026.

All questions and submissions must be submitted electronically to both Alan Elder and Bradley Beers at alan.elder@uspto.gov and bradley.beers@uspto.gov.

a. Table 1: Corporate Overview (No longer than three pages in length)

- i. Name of company
- ii. Brief description of your company
- iii. Name of business unit responding to the RFI (if applicable)
- iv. Business size and size standard/applicable North American Industry Classification System (NAICS) codes
- v. Dun & Bradstreet Data Universal Numbering System number
- vi. Website address
- vii. Applicable certifications and authorizations, such as Federal Information Security Management Act (FISMA) compliance and FedRAMP authorization for cloud service providers
- viii. Commercial and government markets for which your company provides an AI/ML capability or solution to similar problem sets
- ix. Federal government contract vehicles, if any, under which your company offers AI/ML tools/capabilities
- x. Is your company considered a small business under NAICS code 519290? (Yes/No)

- xi. Type of small business, if applicable (e.g., Woman-Owned, Service-Disabled Veteran Owned, 8(a), HUBZone, etc.)
- xii. Do you have a cost accounting system deemed adequate by a cognizant audit agency? (e.g., DCAA)
- xiii. Do you have an approved purchasing system?
- xiv. Company points of contact (Name, position, phone number, and email address)

b. Table 2: Prior and Current Corporate Experience (No longer than three pages in length per example)

- i. Provide a brief description of your company's experience providing the same or substantially similar services and/or product solutions to both commercial and government organizations
 - 1. Submit names of no more than three references
 - 2. Date of service
 - 3. Dollar value
 - 4. Contractor performance assessment ratings, if applicable
- ii. Responses should include references of similar size, complexity, and scope. Information should be pertinent and specific.
- iii. All corporate experience must be performed by the respondent as a prime contractor. Please confirm that your company served as the prime contractor for each reference.

c. Table 3: Corporate Capabilities and Approaches (No longer than eight pages in length)

- i. Describe the services and/or product solution(s) for the areas described in section III. The responses must include an overall description of the proposed services and/or solution(s) and provide technical data and a demonstrated ability for those areas identified.
- ii. What is your ability to use existing assets or procure, customize/configure, maintain, and/or provide technical support for the resources needed for the proposed services and/or product(s)?
- iii. Describe technical benefits of your proposed services and/or product solution(s) in terms of:
 - 1. Existing technologies or resources
 - 2. Improvements/enhancements
 - 3. Cost efficiencies of your specific approach
 - 4. Any other support capabilities that provide service and/or product excellence
- iv. What is your approach for transitioning your services to a new customer?
- v. How do you typically integrate your systems with a customer's infrastructure, back-end systems, and website?
- vi. What solution model (e.g., on-premise, cloud, etc.) would you recommend for the USPTO?
- vii. Describe options that your company can implement to set up an environment (sandbox) to demonstrate your product and allow USPTO staff to perform a hands-on evaluation of your product
- viii. Provide a Voluntary Accessibility Product Template (VPAT)

d. Table 4: Cost (No longer than two pages in length)

- i. What information would you need from the USPTO in order to provide a priced solution?
- ii. Which contract type does your company recommend for this requirement?
 - a. Time-and-Materials (T&M)
 - b. Labor-Hour (LH)
 - c. Firm-Fixed-Price (FFP)
 - d. Cost-Plus-Fixed-Fee (CPFF)
 - e. Cost-Plus-Incentive-Fee (CPIF)
 - f. Fixed-Price Incentive Firm Target (FPIF)
 - g. Other
- iii. Describe what pricing units you typically utilize for similar services (e.g., per hour, each, etc.)
- iv. A rough order of magnitude (ROM) estimate is sufficient for this effort.

VII. Stage Two: Invitation to submit Concept Paper(s) & Present/Demonstrate a Prototype Solution (Oral Presentation). (e.g. bake-off).

After assessment of vendors' Stage One submissions, the Contracting Officer and COR will invite those vendors it considers to be viable contenders to receive an Alternate Competition Solicitation to submit Concept Papers and Present/Demonstrate a prototype solution (Oral Presentation). *If advised to proceed to the Second Stage, all vendors' RFI responses to the Second Stage Concept Paper & Present/Demonstrate Prototype Solution (Oral Presentation) submissions will be due at a date and time specified in the advisory letters from the Contracting Officer. (Vendors advised not to proceed may submit next stage responses, however, these vendors are strongly encouraged not to submit and conserve their resources because they will be at a significant disadvantage. The intent of the advisory notice is to minimize development and other costs for those vendors with little to no chance of receiving a solicitation.)*

VIII. Disclaimer

This RFI is issued solely for informational, market research, and planning purposes only. It does not constitute a solicitation or a promise to issue a solicitation in the future. This RFI does not commit the government to contract for any supply or service whatsoever. Please be advised that all submissions become government property and will not be returned. The USPTO will not provide reimbursement for costs incurred in responding to this RFI. Respondents are advised that the USPTO is under no obligation to acknowledge receipt of the information received or provide feedback to respondents with respect to any information submitted under this RFI. Information in responses will be held confidential to the extent permitted under applicable laws and regulations.

IX Patent and Trademark Office Acquisition Guidelines (PTAG)

6.1.1 Alternative Competition.

The government contemplates utilizing the Alternative Competition Method in accordance with the PTAG and the Patent and Trademark Office Efficiency Act, 35 U.S.C. 2(b)(4)(A). This RFI is intended as preliminary market information gathering which the USPTO will use to determine which vendor(s) is/are the most likely to successfully meet the agency's needs and are thereby eligible to



participate in an alternative competition. After conducting market research, the contracting officer and contracting officer's representative will use their technical expertise and understanding of the marketplace to determine which vendor(s) is/are most likely to successfully meet the agency's needs and are thereby eligible to participate in an alternative competition. As a result of this market research, the solicitation will only be issued to the limited number of qualified vendor(s).

This RFI is not a request for competitive proposals.

The government will not utilize formal evaluation criteria for market research associated with PTAG 6.1.1. The government will review RFI responses to determine which vendor(s) are most likely to successfully meet the agency's requirements for Fraud Impersonation AI, Unsupervised AI, and Discovering Impersonations AI.